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Case Number: 24NNCV05579 Hearing Date: September 18, 2026 Dept: T

Mansoor

Shams, an individual vs. Vons, an unknown entity, et al.

Motion to Compel

Deposition of Defendant The Vons Companies, Inc.'s PMK Witness

Moving Party: Plaintiff

Mansoor Shams

Responding Party: Defendant

The Vons Companies, Inc.

Tentative Ruling: Deny; Request for Sanctions Granted

BACKGROUND

This

is a premises liability and negligence action arising from an alleged slip and fall incident on November 20, 2022. This action is brought by Plaintiff Mansoor Shams ("Plaintiff") against Defendants The Vons Companies, Inc., erroneously sued as Vons, an unknown entity, ("Vons" or "Defendant") and Ventura Flores ("Flores").

Plaintiff now moves to compel the deposition of Defendant's Person Most Knowledgeable ("PMK") for the following subject matter category: "The disposition of any video depicting the INCIDENT."

Defendant opposes, and Plaintiff replies.

MOVING

PARTY POSITION

Plaintiff asks for an order compelling Vons to provide a PMK witness for this category because Vons had an obligation to preserve the relevant video footage in anticipation of pending litigation and failed to do so.

Plaintiff also seeks \$5,460.00 in monetary sanctions against Defendant's counsel.

OPPOSITION

Defendant contends that it has already produced a PMK witness who testified as to the disposition of the video footage of the subject incident and that there is not a PMK witness with greater or different knowledge to offer on this issue. Defendant contends further PMK testimony on this topic would be cumulative, disproportionate, and unduly burdensome.

Defendant contends that Plaintiff's sanctions request should be denied and that sanctions should instead be imposed on Plaintiff's counsel in the amount of \$1,400.00.

REPLY

Plaintiff responds that Defendant's opposition seeks to mislead the Court because PMK witness Flores did not provide any testimony as to the disposition of this video footage. Plaintiff also reiterates his request for sanctions.

ANALYSIS

I.

Legal

Standard

A. Motion to Compel Deposition

“If,

after service of a deposition notice, a party to the action ... , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document ... described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document ... described in the deposition notice.” (Code Civ. Proc. § 2025.450, subd. (a).)

“A motion under subdivision (a)
[above] shall comply with both of the following:

1. The motion shall set forth
specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.
2. The motion shall be accompanied
by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.”

(Code Civ. Proc. § 2025.450,
subd. (b).)

II.
Discussion

A.
Meet and Confer

Based
on the declaration of Plaintiff's counsel, the Court finds that the parties sufficiently met and conferred prior to the filing of the instant motion. (Khorshidi Decl. ¶ 11.)

B.
Compel Deposition

Code of Civil Procedure section

2025.010 provides that, subject to specific limits and restrictions in the Civil Discovery Act, any party may obtain discovery "by taking in California the oral deposition of any person, including any party to the action." "The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc. § 2025.010.) "If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent." (Code Civ. Proc. § 2025.230.)

Here, Plaintiff seeks to compel the deposition of Defendant's PMK witness for the following subject matter category: "The disposition of any video depicting the INCIDENT." (Khorshidi Decl. ¶ 8, Exh. F, at p. 3.)

In objecting to the underlying deposition notice, Defendant stated as follows: "The Notice fails to comply with Code of Civil Procedure §2025.230. The category description is vague, ambiguous, overly broad and unintelligible and fails to describe with particularity the matters upon which examination is requested. Without waiving said objections, answering defendant does not have any security surveillance of the INCIDENT, and thus is unable to produce any employee to respond to this category." (Khorshidi Decl. ¶ 9, Exh. G, at p. 4.)

Based on the available record, and the nature of the underlying action, the production of a PMK witness for this subject matter category is unduly burdensome on Defendant, as this category is not reasonably calculated to lead to the discovery of admissible evidence and places more burden on Defendant than the value of the information sought therein. (Code Civ. Proc., § 2019.030; cf. *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 218 ["Generalized demands, insupportable by evidence showing at least the potential evidentiary value of the information sought, are not permitted."].)

Therefore, the motion is denied.

C. Sanctions

Initially,

the Court notes that it may consider this sanctions request, as there is no statutory requirement that a separate motion be brought to seek monetary sanctions for a misuse of discovery when sought in opposition to a discovery motion. (*Dalessandro v. Mitchell* (2019) 43 Cal.App.5th 1088, 1092 [“[A] separate motion is not required, nor is a separate hearing on discovery sanctions.”]; see, e.g., *ibid.* [finding that the trial court properly awarded monetary sanctions that were sought as part of the opposition to the motion to compel].)

Here,

the Court finds that Plaintiff’s motion does represent a misuse of the discovery process. Defendant has repeatedly and consistently maintained that the subject video was not preserved because there was no apparent slip and fall and there were no apparent injuries. As much as Plaintiff is dissatisfied with this response, it is quite clear there is nothing left to discover and any further discovery efforts on this issue, including this motion, represent an abuse of the discovery process.

Defendant’s reasonable request for sanctions against Plaintiff’s counsel is granted in the amount of \$1,400.

RULING

Plaintiff

Mansoor Shams’ Motion to Compel Deposition of Defendant The Vons Companies, Inc.’s PMK Witness is DENIED. Defendant’s request for sanctions is GRANTED in the amount of \$1,400.00 against Plaintiff’s attorney of record only. Sanctions to be paid within 30 days of this order.